

STATE OF OKLAHOMA

1st Session of the 60th Legislature (2025)

HOUSE BILL 2713

By: Ford

AS INTRODUCED

An Act relating to motor vehicles; amending 47 O.S. 2021, Section 1115.1, which relates to seizure of vehicles not bearing or displaying proper license plate; modifying certain time frame; providing for mandatory seizure of certain vehicles; amending 47 O.S. 2021, Section 1132, as last amended by Section 10, Chapter 236, O.S.L. 2024 (47 O.S. Supp. 2024, Section 1132), which relates to vehicle registration fees; modifying penalty for certain late payment; modifying the place of deposit for collected monies; providing discounts for certain timely payments; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 47 O.S. 2021, Section 1115.1, is amended to read as follows:

Section 1115.1. In addition to the penalties provided in the Oklahoma Vehicle License and Registration Act, after ~~ninety (90)~~ sixty (60) days from the expiration date for annual registration of a vehicle or the transfer or change of ownership of a vehicle, the Corporation Commission, Department of Public Safety, county sheriffs, and all other duly authorized peace officers of this state

1 ~~may~~ shall seize and take into custody every vehicle owned within
2 this state not bearing or displaying a proper license plate required
3 by the Oklahoma Vehicle License and Registration Act. The vehicle
4 shall not be released to the owner until it is duly registered and
5 the license, registration, or title fee and penalties due are paid
6 in full, proof of security or an affidavit that the vehicle will not
7 be used on public highways or public streets, as required pursuant
8 to Section 7-600 et seq. of this title, is furnished, and the cost
9 of seizure, including the reasonable cost of taking the vehicle into
10 custody and storing the vehicle, have been paid. In the event the
11 owner of any vehicle seized fails to pay such fees and penalties
12 due, together with cost of seizure and storage, and fails to provide
13 proof of security or an affidavit that the vehicle will not be used
14 on public highways or public streets, the Office of Management and
15 Enterprise Services shall proceed to sell the vehicle by posting not
16 fewer than five notices of sale in five different public places in
17 the county where the vehicle is located, one of such notices to be
18 posted at the place where the vehicle is stored. A copy of the
19 notice shall also be sent by certified mail, restricted delivery,
20 with return receipt requested, to the last-known address of the
21 registered owner of the vehicle. The vehicle shall be sold at such
22 sale subject to the following terms and conditions:

23 1. In the event the sale price is equal to, or greater than,
24 the total costs of sale, seizure and the fee and penalty, the

1 purchaser shall be issued a certificate of purchase, license plate,
2 manufactured home registration receipt and decal and registration
3 certificate;

4 2. In the event the sale price is less than the total costs of
5 sale, seizure, and the fee and penalty, the vehicle shall be sold as
6 junk to the highest bidder, whereupon the bidder shall receive a
7 certificate of purchase; and if the vehicle be dismantled, the
8 record to the junked vehicle shall be canceled. If not dismantled,
9 the vehicle shall be immediately registered; and

10 3. Any residual amount remaining unclaimed by the delinquent
11 owner shall be administered in accordance with the Uniform Unclaimed
12 Property Act.

13 SECTION 2. AMENDATORY 47 O.S. 2021, Section 1132, as
14 last amended by Section 10, Chapter 236, O.S.L. 2024 (47 O.S. Supp.
15 2024, Section 1132), is amended to read as follows:

16 Section 1132. A. For all vehicles, unless otherwise
17 specifically provided by the Oklahoma Vehicle License and
18 Registration Act, a registration fee shall be assessed at the time
19 of initial registration by the owner and annually thereafter, for
20 the use of the avenues of public access within this state in the
21 following amounts:

22 1. For the first through the fourth year of registration in
23 this state or any other state, Eighty-five Dollars (\$85.00);
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1 2. For the fifth through the eighth year of registration in
2 this state or any other state, Seventy-five Dollars (\$75.00);

3 3. For the ninth through the twelfth year of registration in
4 this state or any other state, Fifty-five Dollars (\$55.00);

5 4. For the thirteenth through the sixteenth year of
6 registration in this state or any other state, Thirty-five Dollars
7 (\$35.00); and

8 5. For the seventeenth and any following year of registration
9 in this state or any other state, Fifteen Dollars (\$15.00).

10 The registration fee provided for in this subsection shall be in
11 lieu of all other taxes, general or local, unless otherwise
12 specifically provided.

13 On and after January 1, 2022, if a physically disabled license
14 plate is issued pursuant to paragraph 3 of subsection B of Section
15 1135.1 of this title, any registration fee required for such license
16 plate and the fee required pursuant to this subsection shall be
17 remitted at the same time and subject to a single registration
18 period. Upon receipt of a physically disabled license plate, the
19 standard-issue license plate must be surrendered to Service Oklahoma
20 or the licensed operator. The physically disabled license plate
21 must be properly displayed as required for a standard-issue license
22 plate and will be the sole license plate issued and assigned to the
23 vehicle. Service Oklahoma shall determine, by rule, a method for
24 making required fee adjustments when a physically disabled license

1 plate is obtained during a twelve-month period for which a
2 registration fee has already been remitted pursuant to this
3 subsection. The combination of fees in a single remittance shall
4 not alter the apportionment otherwise provided for by law.

5 B. For all-terrain vehicles and motorcycles used exclusively
6 for use off roads or highways purchased on or after July 1, 2005,
7 and for all-terrain vehicles and motorcycles used exclusively for
8 use off roads or highways purchased prior to July 1, 2005, which the
9 owner chooses to register pursuant to the provisions of Section
10 1115.3 of this title, an initial and nonrecurring registration fee
11 of Eleven Dollars (\$11.00) shall be assessed at the time of initial
12 registration by the owner. Nine Dollars (\$9.00) of the registration
13 fee shall be deposited in the Tax Commission Reimbursement Fund
14 through December 31, 2022, and beginning January 1, 2023, this fee
15 shall be deposited in the Service Oklahoma Reimbursement Fund. Two
16 Dollars (\$2.00) of the registration fee shall be retained by the
17 licensed operator. The fees required by subsection A of this
18 section shall not be required for all-terrain vehicles or
19 motorcycles used exclusively off roads and highways.

20 C. For utility vehicles used exclusively for use off roads or
21 highways purchased on or after July 1, 2008, and for utility
22 vehicles used exclusively for use off roads or highways purchased
23 prior to July 1, 2008, which the owner chooses to register pursuant
24 to the provisions of Section 1115.3 of this title, an initial and

1 nonrecurring registration fee of Eleven Dollars (\$11.00) shall be
2 assessed at the time of initial registration by the owner. Nine
3 Dollars (\$9.00) of the registration fee shall be deposited in the
4 Tax Commission Reimbursement Fund through December 31, 2022, and
5 beginning January 1, 2023, this fee shall be deposited in the
6 Service Oklahoma Reimbursement Fund. Two Dollars (\$2.00) of the
7 registration fee shall be retained by the licensed operator. The
8 fees required by subsection A of this section shall not be required
9 for utility vehicles used exclusively off roads and highways.

10 D. There shall be a credit allowed with respect to the fee for
11 registration of a new vehicle which is a replacement for:

12 1. A new original vehicle which is stolen from the
13 purchaser/registrant within ninety (90) days of the date of purchase
14 of the original vehicle as certified by a police report or other
15 documentation as required by Service Oklahoma; or

16 2. A defective new original vehicle returned by the
17 purchaser/registrant to the seller within six (6) months of the date
18 of purchase of the defective new original vehicle as certified by
19 the manufacturer.

20 The credit shall be in the amount of the fee for registration
21 which was paid for the new original vehicle and shall be applied to
22 the registration fee for the replacement vehicle. In no event will
23 the credit be refunded.

1 E. Upon every transfer or change of ownership of a vehicle, the
2 new owner shall obtain title for and, except in the case of salvage
3 vehicles and manufactured homes, register the vehicle within two (2)
4 months of change of ownership and pay a transfer fee of Fifteen
5 Dollars (\$15.00) in addition to any other fees provided for in the
6 Oklahoma Vehicle License and Registration Act. Additionally, within
7 two (2) business days of the date of the sale or transfer of the
8 motor vehicle, the parties must submit the requisite documentation
9 to Service Oklahoma or a licensed operator identifying the motor
10 vehicle subject to the sale or transfer, purchaser information, and
11 any associated license plate on the vehicle, pursuant to the
12 requirements of Section 1112.2 of this title. No new decal shall be
13 issued to the registrant for an existing license plate. Thereafter,
14 the owner shall register the vehicle annually on the anniversary
15 date of its initial registration in this state and shall pay the
16 fees provided in subsection A of this section and receive a decal
17 evidencing such payment. Provided, used motor vehicle dealers shall
18 be exempt from the provisions of this section.

19 F. In the event a new or used vehicle is not registered,
20 titled, and tagged within two (2) months from the date of transfer
21 of ownership, the penalty for the failure of the owner of the
22 vehicle to register the vehicle within two (2) months shall be ~~One~~
23 ~~Dollar (\$1.00) per day, provided that in no event shall the penalty~~
24 ~~exceed~~ One Hundred Dollars (\$100.00). An additional penalty of One

1 Hundred Dollars (\$100.00) shall be assessed for each period of
2 thirty (30) days following the first assessed penalty until the
3 vehicle is registered, provided that in no event shall the penalty
4 exceed One Thousand Two Hundred Dollars (\$1,200.00). No penalty
5 shall be waived by Service Oklahoma or any licensed operator except
6 as provided in subsection C of Section 1127 of this title. ~~Of each~~
7 ~~one-dollar penalty~~ One hundred percent (100%) of the penalties
8 collected pursuant to this subsection:

9 ~~1. Twenty-one cents (\$0.21) shall be apportioned as provided in~~
10 ~~Section 1104 of this title;~~

11 ~~2. Twenty-one cents (\$0.21) shall be retained by the licensed~~
12 ~~operator; and~~

13 ~~3. Fifty-eight cents (\$0.58) shall be deposited in the General~~
14 ~~Revenue Fund~~ shall be deposited in the Department of Public Safety
15 Patrol Vehicle Revolving Fund established in Section 2-143 of this
16 title.

17 G. Owners of new or used vehicles properly registered within
18 the two-month time frame prescribed in subsection F of this section
19 shall receive a three-percent discount on the initial registration
20 fee prescribed in paragraph 1 of subsection A of this section.
21 Owners of vehicles timely renewing a vehicle's annual registration
22 on or before the last day of the month following the expiration date
23 as prescribed in paragraph 4 of subsection C of Section 1115 of this
24 title shall receive a discount of Twenty Dollars (\$20.00) for

1 vehicles whose registration is being renewed in the second through
2 sixteenth year.

3 SECTION 3. This act shall become effective November 1, 2025.

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